

SCALIA, J., dissenting

The *Richardson* opinion treated that as fairly included within the taxpayer-standing question, or at least as plainly indistinguishable from it:

“The respondent’s claim is that without detailed information on CIA expenditures—and hence its activities—he cannot intelligently follow the actions of Congress or the Executive, *nor can he properly fulfill his obligations as a member of the electorate in voting for candidates seeking national office.*

“*This is surely the kind of a generalized grievance described in both Frothingham and Flast since the impact on him is plainly undifferentiated and common to all members of the public.*” *Id.*, at 176–177 (citations and internal quotation marks omitted) (emphasis added).

If *Richardson* left voter standing unaffected, one must marvel at the unaccustomed ineptitude of the American Civil Liberties Union Foundation, which litigated *Richardson*, in not immediately refileing with an explicit voter-standing allegation. Fairly read, and applying a fair understanding of its important purposes, *Richardson* is indistinguishable from the present case.

The Court’s opinion asserts that our language disapproving generalized grievances “invariably appears in cases where the harm at issue is not only widely shared, but is also of an abstract and indefinite nature.” *Ante*, at 23. “Often,” the Court says, “the fact that an interest is abstract and the fact that it is widely shared go hand in hand. But their association is not invariable, and where a harm is concrete, though widely shared, the Court has found ‘injury in fact.’” *Ante*, at 24. If that is so—if concrete generalized grievances (like concrete particularized grievances) are OK, and abstract generalized grievances (like abstract particularized grievances) are bad—one must wonder why we ever *developed* the superfluous distinction between generalized and particularized grievances at all. But of course the Court is